

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on May 16, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Erasure against SER POWER SOLAR, S.L. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that, by means of a burofax sent on January 15, 2024, they requested the erasure of their personal data held by their former employer, without having received a response.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on August 16, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days they could present any allegations they deemed appropriate, summarizing the following allegations:

"As already noted in the previous document submitted regarding the requested information, we reiterate in full what has been stated, requesting the filing of this file, as the complainant's data has been duly blocked, in application of the provisions of Article 32 of the LOPDGDD.

As previously stated in the prior document, and with the Spanish Agency for the Protection of Data being aware of the existence of judicial proceedings initiated against the complainant, only, and in the case that it is strictly necessary, the data will be made available to the competent authorities when appropriate."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they consider appropriate, summarizing the following allegations:

"As no resolution has been issued in this file, I proceed to ratify my complaint, once I received the communication of November 25, 2024, since the company itself admits that the data is 'blocked' due to the existence of judicial proceedings, but does not refer to or exist any related to the alleged images and/or videos of explicit sexual content, which, if they exist, must be immediately erased and the corresponding sanctions applied - not blocked - precisely because they have only served as a mechanism of harassment, intimidation, and a manifest recklessness that borders on fraud and procedural deceit, in addition to the fact that none could be a crime as they do not involve child pornography, nor at any time did I have anything other than a corporate phone line, never a mobile associated with any business Gmail account, given that I even used my personal mobile for that line and my own, so that if there had been any error, mere viewing already constitutes an illegitimate intrusion into my private life and even more so with the blackmail to my family sphere."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding the

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obligations that are incumbent upon them, as well as addressing the claims presented by an interested party and investigating, in a timely manner, the reason for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of their functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the claim was forwarded to the party being claimed against for them to analyze it, respond to this Agency within one month, and provide proof of having given the claimant the due response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on August 16, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim presented was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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It is also taken into account what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge

(without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replications of the same.

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3. Sections 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation that requires the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right indicated in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of that processing; or
- e) for the formulation, exercise, or defense of claims."

V

Conclusion

We will begin by stating that this claim will only consider whether the requested right, the right to erasure, has been addressed or not. The other issues raised by the parties, their discrepancies, disagreements, etc., must be resolved outside of this resolution, as they pertain to matters outside the

competencies attributed to this AEPD.

During the processing of this procedure, the entity being claimed has responded to this Agency, but does not demonstrate having addressed the request made by the claimant, sending the mandatory response to their request.

It is important to highlight that the erasure of data is not an absolute right. The entity being claimed may refuse to delete the data if it can demonstrate that there is a legitimate reason to retain it, such as, for example, to comply with a legal obligation. In this case, the entity being claimed relies on the existence of legal proceedings initiated against the claimant to deny the erasure of the claimant's personal data.

Thus, it cannot be accepted that the response that corresponds to be given can be expressed on the occasion of a mere administrative procedure, such as the submission of allegations regarding this procedure, initiated precisely for not properly addressing the request in question, but rather a response must be given to the claimant themselves.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, where appropriate, to deny the request with justification indicating the reasons why the right in question cannot be considered.

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Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision taken regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that originated this procedure.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that Article 17 of the GDPR has been infringed and to urge SER POWER SOLAR, S.L. with NIF B10833366, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be addressed, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to SER POWER SOLAR, S.L.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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